

their rights. An objection against the grant of a patent had to be raised in such a way that the applicants were able to understand its factual basis and to react accordingly without first having to guess what the examining division might have had in mind.

Although parties may not be taken by surprise by the reasons for a decision, it is also settled case law of the Enlarged Board of Appeal under Art. 112a EPC that a board of appeal is not required to provide the parties in advance with all foreseeable arguments in favour of or against a request. In other words, parties are not entitled to advance indications of all reasons for a decision in detail (see chapter V.B.4.3.5 "No obligation to provide detailed reasons for a decision in advance"). In T 1634/10, T 2405/10, T 1378/11 and T 1090/18 the boards explicitly applied this case law of the Enlarged Board of Appeal in relation to Art. 112a EPC to first instance proceedings.

In T 1065/16, lack of reproducibility as a ground for opposition had not been a subject of the opposition proceedings until the oral proceedings. It therefore amounted to a fresh ground for opposition and its introduction came as a surprise. In its summons, the opposition division had expressly stated that only novelty and the inventive step of claim 1's subject-matter were to be examined. As the patent proprietor had not been given sufficient opportunity to comment on this new ground for opposition, the opposition division had infringed Art. 113(1) EPC and thus committed a substantial procedural violation.

In T 2351/16 the board found that the examining division had issued a decision of refusal after only one communication under Art. 94(3) EPC as such did not constitute a violation of the appellant's right to be heard (see also chapter IV.B.2.3. "Refusal after a single communication"). However, in its decision the opposition division had raised (for the first time) an additional argument in support of the division's objection, following the applicant's reply to the Art. 94(3) EPC communication. This constituted a violation of the applicant's right to be heard and, therefore, a substantial procedural violation.

2.3.2 The meaning of "grounds or evidence"

"Grounds or evidence" under Art. 113(1) EPC are to be understood as meaning the essential legal and factual reasoning on which the decision is based (T 532/91, T 105/93, T 187/95, T 1154/04, T 305/14). In T 951/92 (OJ 1996, 53) the board ruled that the term "grounds or evidence" should not be narrowly interpreted and was to be understood as referring to the legal and factual reasons leading to refusal of the application, and not in the narrow sense of a requirement of the EPC (see also T 1423/15).

In T 556/15, the examining division's impugned decision was based entirely on a lack of compliance with Art. 123(2) EPC. The board compared the objections under Art. 123(2) EPC raised by the examining division in its two communications with those forming the grounds for its decision. The appellant had never had a chance to comment on those grounds. In the board's view, the term "grounds or evidence" in Art. 113(1) EPC was not to be interpreted narrowly but rather within the meaning of T 951/92 (see also T 233/18). However, this case differed from T 951/92; in T 556/15 the examining division's communications contained objections under Art. 123(2) EPC that, while detailed, did not concern any of the matters on which the decision was ultimately based. The appellant had

thus been unaware of which features of the claims under discussion had violated Art. 123(2) EPC, until it received the decision, despite the appellant having had several opportunities to amend the claims before the decision.

In T 375/00 the appellant (opponent) considered that the technical problem mentioned by the opposition division in its decision was different from that discussed in the preceding proceedings. The board held that the appellant's right to be heard had not been violated, because the definition of the objective problem was part of the arguments, not part of the grounds as specified in Art. 113(1) EPC.

In T 33/93 the board stated that the citation of a board of appeal decision for the first time in the decision under appeal was not a fresh ground or piece of evidence within the meaning of Art. 113(1) EPC, but a mere repetition of arguments, since it only confirmed the position duly brought to the appellant's attention.

In T 1634/10 the examining division had issued a reasoned communication setting out its objections in the light of two prior art documents. The board held that the mere fact that the examining division had not agreed with the submission of the appellant did not amount to a breach of the right to be heard.

In T 2238/11 the appellant argued that the examining division had surprisingly concluded in the "Further Remarks" section in the decision under appeal that the claimed subject-matter lacked novelty and objected that it had not been heard on that aspect. However, the decision under appeal had been based on lack of inventive step, not on lack of novelty. The board held that a party's right to be heard was not violated if the party did not have the opportunity to comment on observations in an obiter dictum (T 726/10 and T 725/05). The "Further Remarks" section in the decision under appeal did not form part of the actual decision.

2.3.3 Opportunity to comment on evidence

In J 20/85 (OJ 1987, 102) the board pointed out that a decision on an issue of fact could only properly be made by the EPO after all the evidence on which such decision was to be based had been identified and communicated to the party concerned. In T 820/10 the examining division refused the application on the ground of lack of inventive step in view of documents that were cited for the very first time in the appealed decision itself. The board held that the decision therefore relied upon evidence on which the applicant had not had an opportunity to present its comments. Furthermore, in J 3/90 (OJ 1991, 550) the Legal Board of Appeal held that where the EPO had examined the facts, Art. 113(1) EPC was not complied with unless the parties concerned had been fully informed about the enquiries made, and of the results, and had then been given sufficient opportunity to present their comments before any decision was issued (see also J 16/04).

In T 1401/16 the examining division based its conclusions concerning critical issues, at least in part, on two Wikipedia entries cited in the decision. However, this evidence was never referred to during the examination proceedings and both entries were mentioned for the very first time in the appealed decision itself. In consequence, the applicant had no

opportunity to present its comments in that respect. This constituted a violation of the provisions of Art. 113(1) EPC.

See also chapter III.G.3.3. "Right to be heard".

2.3.4 Documents supplied by applicants but used against them

The right to be heard has not been observed if a decision to refuse an application is based essentially on documents which, though supplied by the applicant in support of his case, are used against him to produce an effect on which he has not had an opportunity to make observations (see T 18/81, OJ 1985, 166 and T 188/95).

2.3.5 Document cited containing information already known

In T 643/96 the examining division relied in its decision on a document for which it gave only incomplete bibliographic data. The board held that the examining division's failure to provide the applicant with a copy of the document did not amount to a substantial procedural violation (regarding the right to be heard) because the document added nothing to the case, and contained only information already known to the applicant. See also T 1564/18 in which no communication of the examining division contained the essential legal and factual reasons leading to the finding in the appealed decision that claim 1 of the main request lacked novelty over the prior-art device considered for the first time in the novelty assessment of the refusal. Since no reason had been given why the amendments made in advance of the oral proceedings held in absentia justified the change to this new closest prior art, the decision was issued in violation of the right to be heard even though the prior-art device on which the refusal was based was disclosed in the same document as a closest prior art considered previously in the examination procedure.

2.3.6 Reliance on the International Preliminary Examination Report (IPER)

In T 587/02 the board held that if the only communication preceding the decision to refuse an application merely draws attention to an IPER, the requirements of Art. 113(1) EPC are met provided the IPER constitutes a reasoned statement as required by R. 51(3) EPC 1973 (R. 71(2) EPC), using language corresponding to that of the EPC; in the case of an inventive step objection this requires a logical chain of reasoning which can be understood and, if appropriate, answered by the applicant. In the case in hand, the IPER did not fulfil these requirements, and the board held that the applicant's right to be heard had been violated (see also T 1020/15).

In T 1065/99 the board stated that when an IPER drawn up by the EPO under the PCT was relied on by the examining division, such reliance should not be presented to applicants in such a manner as to suggest that the examining division had not given objective consideration to the patentability requirements of the EPC. In this case, the IPER had been adopted by the examining division as the only basis for its opinion that the application did not meet the requirements of the EPC. The board came to the conclusion that there were three objections which were only obliquely touched upon in the IPER, and

thus in the communication under R. 51(2) EPC 1973 (R. 71(1) EPC). Therefore, the party had had no opportunity to contest those objections.

2.3.7 Change of provisional opinion

In T 68/94 the appellant submitted that the opposition division had violated Art. 113 EPC by changing its provisional opinion after the oral proceedings without giving the appellants an opportunity to comment on the grounds on which the contested decision was based. The board pointed out that provisional opinions were never binding. The purpose of oral proceedings was to summarise and discuss the parties' arguments. All arguments in the case had been known to both parties.

In T 1824/15, the board held that the members of an examining division were free to change their minds at any point in the procedure, including during oral proceedings, as long as the requirements of Art. 113(1) EPC were fulfilled.

2.3.8 Statement of grounds of appeal not received by respondent

For the EPO's failure to deliver the opponent's statement of grounds of appeal to the patentee (respondent) see chapter V.B.4.3.19 "Successful petitions under Article 112a(2)(c) EPC".

2.4. Consideration of the parties' arguments, submissions and evidence

2.4.1 General principles

The right to be heard under Art. 113(1) EPC requires that those involved be given an opportunity not only to present comments (on the facts and considerations pertinent to the decision) but also to have those comments considered, that is, reviewed with respect to their relevance for the decision on the matter (see, with regard to Art. 112a EPC, chapter V.B.4.3.10 "Consideration of the parties' arguments in the written decision" and, with regard to R. 111(2) EPC, chapter III.K.3.4. "Reasons for the decision"). However, it is not necessary to consider each and every argument of the parties in detail in a decision. The boards may also refute arguments implicitly, and may disregard irrelevant arguments (R. 5/15).

2.4.2 Decision must demonstrably show that arguments were heard and considered

The deciding department must demonstrably hear and consider parties' comments (T 206/10, with further reference to T 763/04, T 246/08; see also T 1709/06, T 645/11). Merely repeating the parties' submissions is not enough; rather, it has to be clear from the reasons that the substance of their core arguments has been addressed in arriving at the decision (T 2352/13).

A decision which fails to take into account the arguments submitted by a party and which is based on a ground on which the party had had no opportunity to present its comments, contravenes Art. 113(1) EPC and this constitutes a substantial procedural violation (see

J.7/82, OJ 1982, 391; T.1039/00, T.778/98, T.1312/10). When a decision refusing an application is based on several grounds supported by respective arguments and evidence, it is of fundamental importance that the decision as a whole meets the requirements of Art.113(1) EPC (T.1034/11). A decision must show that all potentially refutative arguments adduced by a party are actually refutable (see T.246/08, T.337/17).

In T.763/04 the board held that Art.113(1) EPC is contravened if facts and arguments which, according to the appellant, are clearly central to his case and which may speak against the decision taken, are completely disregarded in that decision. See also T.1898/11, T.2227/09, T.1206/12, T.1592/13 and T.212/17. According to T.740/93, in addition to the logical chain of facts and reasons, the decision should include some motivation on the crucial points of dispute. In T.1557/07 the board held that the examining division had commented on the crucial points of dispute, giving the applicants a fair idea of why their submissions were not considered convincing. In T.2012/17 the board found that the contested decision neither explicitly nor implicitly addressed the appellant's arguments with respect to at least two crucial points of dispute.

In T.238/94 the board considered that, although the opposition division's decision indeed contained no direct reference to the appellants' submissions concerning lack of inventive step, the opposition division had considered in its decision the disclosures of all the documents cited by the appellants and respondents, and also the possible combinations of their teachings. Thus, in the board's view, the appellants' submissions had actually been taken into account, albeit indirectly, in the process of arriving at the contested decision (see also T.1004/96).

In T.1843/11 the appellant alleged that a substantial procedural violation had occurred because it had raised an argument concerning sufficiency of disclosure that had not been addressed in the decision of the opposition division. The board recalled that, according to R.111(2) EPC, decisions of the EPO which are open to appeal must be reasoned. Although the opposition division was not required to address each and every argument of a party (see in this chapter III.B.2.4.3), the important question was whether the party concerned could objectively understand whether the decision was justified or not. The decision should contain at least some reasoning on crucial points of dispute, in order to give the party concerned a fair idea of why its submissions were not considered convincing and to enable it to base its grounds of appeal on relevant issues (see T.70/02). According to the board, it was not sufficient for the requirements of Art.113(1) EPC to be met that the appellant had been given the opportunity to (and in fact had) put forward the argument. What was additionally important was that the opposition division demonstrably heard and considered this argument (see T.763/04). As this condition had not been met, a substantial procedural violation had occurred.

In the case at issue in T.1411/07, the patent proprietor had challenged the admissibility of the opposition on the ground of lack of substantiation, but the opposition division had found it admissible without stating any reasons. The board considered the opposition division's failure to make any reference to the patent proprietor's submissions a breach of R.68(2) EPC 1973 (R.111(2) EPC) and a substantial procedural violation.